

PDT- NDA-20260120

NON-DISCLOSURE AGREEMENT

This Non-Disclosure Agreement (“**Agreement**”) is made on 20 January 2026 (“**Effective Date**”) by and between;

Predictive Company Limited, a company registered and existing under the laws of Thailand, represented by **Nuttakorn Rattanachaisit**, its authorized director, having its registered office at at 10/35 The Trendy Office Building (1A floor), Sukhumvit Soi 13 Klongtoey-Nua Sub-District, Wattana District, Bangkok 10110. (“**Disclosing Party**”)

Phirawit Jitnarong with identification number 1104700160451 and address at 42 Moo 5, Mae la, Saroy, Wangshin, Phrae 54160, Thailand (“**Receiving Party**”)

The Disclosing Party and the Receiving Party may herein collectively be referred to as the “**Parties**” and individually as a “**Party**”.

WHEREAS:

(1) The Purpose of this agreement is for the Disclosing Party to discuss and evaluate a potential business relationship regarding CRM and HIS data migration and API development services, including project cost estimation. (“**Purpose**”)

(2) The Disclosing Party wishes to disclose its Confidential Information (defined below) to the Receiving Party to keep the Confidential Information confidential in accordance with the terms of this Agreement.

NOW IT IS HEREBY AGREED AS FOLLOWS:

1. DEFINITIONS

1.1 “**Confidential Information**” means all information or data disclosed to the Receiving Party or its Representative by the Disclosing Party whether in writing, orally, electronic form or by any other means including but not limited to;

(1) All information, material and other documents that are not generally disclosed including but not limited to trade secret, know-how, intellectual property, proprietary work,

software, design rights, product information, results of research and development (whether in the past, present or planned), list of customers, suppliers or partners, market studies, business plans and business opportunities, financial information, investment expenditures, strategic plans, contact information and any information that identifies an individual.

(2) Any information, material and other documents that are disclosed by the Disclosing Party or its Representatives on website, data room, interview, due diligence for valuation in connection with the transaction.

1.2 “**Representatives**” means any Affiliate, shareholder, director, officer, employee, agent, professional advisor, and other persons who act for or on behalf of the Party.

1.3 “**Affiliate**” means in relation to any Party, any other company or entity which, directly or indirectly controls, is controlled by or is under common control with such Party. For the purpose of this Agreement, control, and its derivatives, mean to own, directly or indirectly, more than fifty percent (50%) of the voting rights of the company, firm or other entity in question;

2. HANDLING OF CONFIDENTIAL INFORMATION

2.1 USE OF CONFIDENTIAL INFORMATION

The Receiving Party has agreed to keep the Confidential Information confidential as follow;

(1) not disclose (whether in whole or in part of the Confidential Information) to other persons, except as writing permitted by the Disclosing Party;

(2) use the Confidential Information solely for the Purpose, except by a specific prior written consent from the Disclosing Party;

(3) not to copy, modify, reproduce, or use any other form of Confidential Information whether in whole or in part of the Confidential Information. Notwithstanding the foregoing, the Receiving Party may retain **1 (one) copy** of all Confidential Information as well as documents, memoranda, notes and other writings prepared based on the Confidential Information for the solely purpose of legal compliance, audit or litigation where the Confidential Information is required. Such copy shall be retained for a period of time as necessary for that purpose.

(4) disclose to its Representatives on a need-to-know basis as reasonably necessary to carry out the Purpose and such Representatives are obliged by this Agreement to not disclose the same.

(5) take all steps necessary to control, prevent or stop the unauthorized access and provide security measures for its preservation including documents, materials and other materials that contain such Confidential Information in reasonable conditions, safe and confidential.

(6) to apply thereto no lesser security measures and degree of care than those which the Receiving Party applies to its own confidential but not less than the reasonable degree of care and discretion.

(7) in the event of the Confidential Information has been disclosed in breach of this Agreement and unauthorized disclosure of the Confidential Information (the “**Unauthorized Disclosure**”), the Receiving Party shall promptly (as reasonably practicable) inform the Disclosing Party and assist the Disclosing Party and its Representative in actions against the violation of this Agreement and the Unauthorized Disclosure.

2.2 **EXCEPTED INFORMATION**

Confidential Information shall exclude any part such disclosed informations follows:

- (1) information which is or becomes (or as of the time of its disclosure) available or in the public domain without breach of this Agreement by the Receiving Party;
- (2) information which was known to the Receiving Party or already lawfully in its possession before receiving it whether directly or indirectly from the Disclosing Party or acquired from a source other than the Disclosing Party without breach by such source of any obligation of confidentiality;
- (3) information which is independently developed by the Receiving Party without use of any Disclosing Party’s Confidential Information;
- (4) information which is disclosed by the Receiving Party with prior written approval of the Disclosing Party;
- (5) information which both Parties have agreed that it is not Confidential Information;
- (6) information required to be disclosed by law or order of competent court.

2.3 **COMPELLED DISCLOSURE**

In the event that Receiving Party or its Representatives is requested or required (by laws, regulations, court orders, subpoena, civil investigative demand or similar process) to disclose any of the Confidential Information, the Receiving Party or its Representative (as the case may be), may furnish that portion of the Confidential Information which Receiving Party is legally compelled to disclose.

3. **REPRESENTATION, WARRANTY AND ACKNOWLEDGEMENT**

3.1 **PARTIES' WARRANTIES**

(1) Each Party represents and warrants that it has full power and authority to enter into the Agreement and the execution and delivery of this Agreement has been duly authorized.

(2) The Disclosing Party warrants that it has the right (before or as of the time of its disclosure) to disclose its Confidential Information under this Agreement.

3.2 **PARTIES' ACKNOWLEDGEMENT**

Both Parties acknowledge that entering into this Agreement does not limit the Parties' right to enter into a contract, negotiate or perform other similar tasks. As long as the Parties have not breached the terms and conditions of this Agreement.

3.3 **CONFIDENTIAL INFORMATION WARRANTY**

The Disclosure under this Agreement makes no warranty, representation or guarantee (whether directly or indirectly) in accuracy, correctness, completeness, sufficiency, reliability of Confidential Information or whether it is up-to-date. *However*, the Disclosing Party shall disclose such information to the Receiving Party in good faith for the Purpose of this Agreement and shall be responsible for the consequences and damages from inaccurate, incomplete and/or unreasonable information. The Disclosing Party shall take any necessary steps to rectify such incidents.

4. **PROPRIETARY WORK AND INTELLECTUAL PROPERTY**

4.1 The Confidential Information, together with all right, proprietary work and other intellectual property rights composed in the Confidential Information, is and remains the property of the Disclosing Party.

4.2 This Agreement shall not convey any interest of a proprietary nature, and in particular shall not transfer (whether directly or indirectly) any interest in any intellectual property rights to the Receiving Party.

4.3 The Receiving Party will not challenge the ownership of the Confidential Information and will not apply for any patent, copyright, trademark or any other intellectual property right in any form related to or covering Confidential Information of the Disclosing Party.

5. **RETURN OF CONFIDENTIAL INFORMATION**

The Disclosing Party has the right to request the Receiving Party to return or destroy the Confidential Information as follows:

- (1) During the Agreement period, the Receiving Party shall return or destroy as a written request by the Disclosing Party or
- (2) After the termination, the Disclosing Party has requested in writing.

When the Receiving Party received such written request by the Disclosing Party, the Receiving Party shall return, destruction, deletion or destroy and certify in writing within 30 (thirty) business days of such Disclosing Party's request or within 30 (thirty) business days of termination or expiry of this Agreement. The Receiving Party may operate as follows:

- (a) return all originals, copies, reproductions and summaries of Confidential Information in its control to the Disclosing Party or;
- (b) destroy all copies, documents and other materials in an electronic storage and retrieval system by any means that makes it inaccessible such copies, documents and other materials inaccessible. *However*, the information or copies which the Receiving Party or its Representative must keep in accordance with the laws, such information or copies will remain subject to the confidentiality obligations under this Agreement.
- (c) In the event of destruction, the Receiving Party shall certify in writing to the Disclosing Party for a confirmation that all Confidential Information has been destroyed or deleted successfully.

6. INDEMNIFICATION

6.1 The Receiving Party indemnifies the Disclosing Party against any loss, claim, action, damage, liability, cost or expense where the Disclosing Party can prove that it was caused by negligence, tort, fraud or not acting in good faith of the Receiving Party or its Representatives.

6.2 The Receiving Party will be responsible for any breach by its Representatives as if it was performed by the Receiving Party.

6.3 The Receiving Party acknowledges and agrees that any breaches under this Agreement may cause irreparable harm to the Disclosing Party and could not be made whole by monetary damages. The Disclosing Party shall be entitled to an injunction or injunctions to prevent breaches of this Agreement from any court of competent jurisdiction.

7. **TERM AND TERMINATION**

This Agreement shall be valid for a period of **1 (one) year**, commencing with the Effective Date and confidentiality and the obligations specified in Clause 2 and 4 shall survive the termination of this Agreement.

8. **MISCELLANEOUS**

8.1 **NON-ASSIGNMENT**

No Party may assign all or any part of this Agreement without the prior written consent of the other Party.

8.2 **WAIVER**

No failure or delay by either Party in exercising any right granted hereunder shall be deemed a waiver.

8.3 **DATA PROTECTION**

To the extent that the Confidential Information constitutes or contains personal data of any other person, both Parties shall comply with all applicable laws and regulations regarding the collection, the use and the disclosure of personal data, including but not limited to, the Personal Data Protection Act of Thailand B.E. 2562 (2019), in order for carrying out the Purpose as contemplated under this Agreement. Both Parties acknowledge and agree that any personal data, acquired from third parties or will be disclosed to third parties for the Purpose under this Agreement, shall be in accordance with the standard specified in Personal Data Protection Laws.

8.4 **NOTICES**

All notices or any other communications under this Agreement shall be in writing and shall sent by delivered in person or registered or recorded delivery post or email to the Party:

- (1) if given by a registered or recorded delivery post to the other Party at the address mentioned above, it shall be deemed to be duly received after three (3) business days of such notice.
- (2) if sent by delivered in person, it shall be deemed to have been received when the recipient's employee or representative signs in the receiving documents.
- (3) if given or made by e-mail, it will be deemed to have been received at the time shown in a delivery confirmation report generated by the sender's e-mail system

which indicates that delivery of e-mail to the recipient's email address has been completed.

In the event that the Party wishes to change the address and/or contact information, the Party shall inform the other Party in writing not less than 7 (seven) days otherwise any of notices that have been sent to the prior address shall be deemed duly received by the Party.

8.5 AMENDMENT

This Agreement may be amended only by writing instrument signed by the Parties.

8.6 SEVERABILITY

Any provision of this Agreement which is determined to be void, invalid, illegal or unenforceable for any reason shall not affect the remainder of this Agreement, which shall remain in effect as though the invalid, illegal or enforceable provision had not been included herein.

8.7 GOVERNING LAW AND JURISDICTION

This Agreement shall be governed by, construed, interpreted and enforced in all accordance with the laws of Thailand, and the Parties hereby submit to the jurisdiction of Thai courts.

8.8 ELECTRONIC SIGNING

This agreement may be executed by electronic means and in one or more counterparts, each of which shall be deemed to be an original. All Parties may rely on such electronic signatures as if they were original.

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IN WITNESS WHEREOF, this Agreement is made in 2 (two) sets, all having the same content. The Parties have caused this Agreement to be duly executed by their authorized representatives as of the date first above mentioned.

Disclosing Party**Predictive Company Limited**

By: _____

(Nuttakorn Rattanachaisit)

Authorized Director

Receiving Party**Phirawit Jitnarong**

By: _____

(Phirawit Jitnarong)

By: _____

(Natee Pichetpinyo)

Witness